gress, and adopted by the states. These amendments contain no expression indicating an intention to apply them to the state governments. This court cannot so apply them.

We are of opinion, that the provision in the fifth amendment to the constitution, declaring that private property shall not be taken for public use, without just compensation, is intended solely as a limitation on the exercise of power by the *government of the United States, and is not applicable to the legislation of the states. We are, therefore, of opinion, [*251 that there is no repugnancy between the several acts of the general assembly of Maryland, given in evidence by the defendants at the trial of this cause, in the court of that state, and the constitution of the United States. This court, therefore, has no jurisdiction of the cause, and it is dismissed.

This cause came on to be heard, on the transcript of the record from the court of appeals for the western shore of the state of Maryland, and was argued by counsel: On consideration whereof, it is the opinion of this court, that there is no repugnancy between the several acts of the general assembly of Maryland, given in evidence by the defendants at the trial of this cause in the court of that state, and the constitution of the United States; whereupon, it is ordered and adjudged by this court, that this writ of error be and the same is hereby dismissed, for the want of jurisdiction.

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*Charles Vattier, Appellant, *v.* Thomas S. Hinde, James B. Hinde and John M. Hinde, Infants, &c. [*252

Jurisdiction in equity.—Evidence on bill of revivor.—Bonâ fide purchase. Departure in pleading.—Chancery practice.

A bill was filed in the circuit court of Ohio, claiming a conveyance of certain real estate in Cincinnati, from the defendants, and after a decree in favor of the complainants, and an appeal to the supreme court, the decree of the circuit court was reversed, because a certain Abraham Garrison, through whom one of the defendants claimed to have derived title, had not been made a party to the proceedings, and who was, at the time of the institution of the same, a citizen of the state of Illinois, although the fact of such citizenship did not then appear on the record; afterwards, a supplemental bill was filed in the circuit court, and Abraham Garrison appeared and answered, and disclaimed all interest in the case; whereupon, the circuit court, with the consent of the complainants, dismissed the bill as to him. If the defendants have distinct interests, so that substantial justice can be done, by decreeing for or against one or more of them, over whom the court has jurisdiction, without affecting the interests of others its jurisdiction may be exercised as to them; if, when the cause came on for hearing, Abraham Garrison had still been a defendant, a decree might then have been pronounced for or against the other defendants, and the bill have been dismissed as to him, if such decree could have been pronounced as to them, without affecting his interests. No principle or law is perceived which opposes this course; the incapacity of the court to exercise jurisdiction over Abraham Garrison could not affect their jurisdiction over other defendants, whose interests were not connected with his, and from whom he was separated, by dismissing the bill as to him.

The cases of Nollan *v.* Torrance, 9 Wheat. 537; Conolly *v.* Taylor, 2 Pet. 556; and Cameron *v.* McRoberts, 3 Wheat. 591, cited and affirmed.

It is the settled practice in the courts of the United States, if the case can be decided on its merits between those who are regularly before them, although other persons, not within their jurisdiction, may be collaterally or incidentally concerned, who must have been made parties, if they had been amenable to its process, that these circumstances shall not expel other suitors who have a constitutional and legal right to submit their case to a court of the United States; provided the decree may be made without affecting their interests; this rule has also been adopted by the court of chancery in England.